

**If Petitioner files the receipt or proof of purchase of the annuity at least five (5) court days before the hearing, the status conference will come off calendar.**

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24CV-01383                      Aldevaran Yoalli Mendoza Cuevas vs Jo Ann Mitts-Jurovich, et al.

Motion to be Relieved as Counsel

**The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.**

**Counsel's declaration states that the client's current address is currently unknown. As such, although counsel's attached declaration contains the information, No. 3(b)(2) of the attorney's declaration on form MC-052 must be filled out. In addition, No. 6 on form MC-053 must contain the client's last known address and telephone number, and No. 7 must include the next hearing date. If at the time of refiling the client's address continues to be unknown, service of the order must be made according to Code of Civil Procedure section 1011, subdivision (b) and Rules of Court, rule 3.252.**

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24CV-03145                      Kristen Sumrall, et al. vs Stephen Sumrall, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

**CONTINUED pursuant to the declaration of Mateo Rendon Salazar, filed August 31, 2026, to December 15, 2026, at 8:15 a.m. in Courtroom 8, for remaining settlement procedures to be completed.**

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25CV-00983                      Davin McCarty vs Dobbins Transportation

Motion for Final Approval of Class Action Settlement

**The motion for final approval of class action settlement is GRANTED.**

**The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has happened since the Court made its order that would cause it to change its determination.**

**The date of final accounting is set for June 4, 2027, at 8:15 a.m. in Courtroom 8.**

**The Court will sign the proposed order lodged with the court on August 14, 2026.**

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25CV-05677                      Vanessa Marin Hernandez vs Emerald Textiles Services Northern California, LLC

Review of Case Status Re: Binding Arbitration

**Appearance required. Appear to update the court on the status of arbitration proceedings.**

## Motion for Attorney's Fees, Costs, and Expenses

**Plaintiff's motion for attorney's fees is GRANTED.**

**Attorney's fees are awarded in the amount of \$9,782.50. Costs are awarded in the amount of \$2,662.95.**

**Plaintiff seeks to set the lodestar at \$26,271.50, inclusive of attorney's fees to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. In addition, Plaintiff seeks a lodestar multiplier of 1.25, enhancing the lodestar of \$26,271.50 to \$31,839.38. Plaintiff also seeks costs in the amount of \$2,662.95.**

**The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)**

**The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the market place, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)**

**Plaintiff's counsel claims an hourly rate of \$445 for the attorney and \$135 for the paralegal. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Accordingly, the court finds it reasonable to set the hourly rate of counsel at \$350 /hour and the paralegal rate at \$125 /hour.**

**A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the attorney time billed is excessive and includes administrative and overhead billing, and therefore finds it reasonable to reduce the hours billed.**

**The Court finds it reasonable to reduce the total attorney time of 51.4 hours by 24.2 hours, as the Court finds 27.2 hours to be the number of hours reasonably expended. The Court finds the hours claimed by the paralegal to be reasonable.**

**This results in a lodestar of \$9,782.50. This represents 27.2 hours at \$350 /hour and 2.1 hours at \$125 /hour. Based on the above, the Court sets the lodestar at \$9,782.50.**

**Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other**

employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.)

However, our own California Supreme Court has stated, “the trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. [emphasis original].) This matter was a straightforward lemon law action that was resolved early in litigation. As such, the Court does not find that a lodestar enhancement is appropriate.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$9,782.50.

Plaintiff’s memorandum of costs seeks total costs in the amount of \$2,662.95. Defendant seeks to tax the costs in their entirety for Plaintiff’s failure to file a memorandum of costs and for failure to provide support for the claimed costs. Forms MC-010 and MC-011 are optional forms. The memorandum of costs on pleading paper is acceptable. Further, once the verified memorandum of costs is filed it serves as prima facie evidence of the reasonableness of the costs listed. The burden is then of the opposing party to challenge the costs. Here, Defendant did not directly challenge the costs. As such, the request to tax costs is denied. Accordingly, costs are awarded in the amount of \$2,662.95.

Plaintiff is awarded total attorney fees and costs in the amount of \$12,445.45.

Attorney fees and costs are to be paid within thirty (30) days of this Court’s order.

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26CV-04534                      Elizabeth Nunez vs Evergreen Capital, LLC

Order to Show Cause

**Appearance required.**

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